

Marc Moszkowski
Le Verdos
83300, Châteaudouble, France
U.S. tel: 251 300 4820
mmm@deepgulf.net

April 3rd, 2023

Sheriff Todd K. Baxter
Monroe County
130 S. Plymouth Ave
Rochester, NY 14614
Phone: 585 753-4178

SUBJECT: Criminal complaint against David RUMSEY and Rustin HOWARD

Dear Sheriff Baxter,

I was directed to contact you by the Monroe County District Attorney's office. I am a resident and citizen of France.

I am hereby reporting to you the following facts regarding the fraudulent deeds perpetrated against me by the conspiracy of Messrs. David RUMSEY ¹ and Rustin HOWARD ², both citizens and residents of the United States of America:

1. In June 2013, at a time when I was employed in the U.S. under an H-1B visa, my employer, Mr. HOWARD, arranged with his friend and close associate Mr. RUMSEY, who was unknown to me, a loan scheme in the amount of €38,750 (\$50,000), at the usurious rate of 17% , which Mr. HOWARD intended to fraudulently substitute for the salaries that the company of which he was and is the Chairman of the Board ³ owed me irrefutably, according to the terms of my

¹ **RUMSEY David**, attorney, reportedly of 1080 Pittsford Victor Road, Suite 100, Pittsford, New York 14534, and 63 Clarkes Crossing, Fairport, New York 14450, both in Monroe County, New York

² **HOWARD Rustin**, Chairman of the Board, DeepGulf, Inc., domiciled at 431 East Zaragoza St., Unit B, Pensacola, Florida 32502, formerly or concurrently of Tompkins County, New York

³ **DeepGulf, Inc.**, a corporation incorporated in December 2004 around my USPTO patents and intellectual property.

employment, to my activities within the company, which generated all (100 %) of the revenue thereof, to his legal obligations, and to the firm commitment he had made to the U.S. government;

2. The purported loan was never signed by hand, did not bear the compulsory manuscript legal notices, and Mr. RUMSEY never paid any amount of money either to me or to any member of my family, nor ever communicated with me at the time;
3. However, in April 2018 Mr. RUMSEY summoned me in summary proceedings before the Court of Draguignan, in France, for the repayment of the amount he claimed to have paid me in June 2013, whereas Mr. RUMSEY had never paid any amount to me or to any member of my family. I was represented by a lawyer and Mr. RUMSEY's complaint was quickly dismissed;
4. Still, in spite of the dismissal, in October 2018, Mr. RUMSEY obtained from the same court a judicial lien on my real estate, arguing mendaciously that he had paid me this amount of €38,750, although he never paid any amount to me or to any of my relatives;
6. I vigorously objected to the lien, but, not having the wherewithal to retain the compulsory counsel, my objections were returned to me unopened by the court;
5. In November 2018, Mr. RUMSEY summoned me again before the same court. Not having the resources at the time to retain a lawyer, which, according to French Civil Law is compulsory, I was still looking for a lawyer who would agree to suspend his fees when the court ruled in April 2019 in favor of Mr. RUMSEY, in my absence and without having ever informed me of the date of the hearing;
6. In June 2019, having by then received sufficient funds, I took the case to the Aix-en-Provence Court of Appeal in France after having secured the services of an attorney, also compulsory before that court;
7. In July 2019, I sent to my lawyer new evidence which unambiguously further proved the fraud committed by Mr. RUMSEY with the help of his accomplice Mr. HOWARD, who happened to still be my employer at the time;
8. In November 2022 the Court of Appeal ruled in favor of Mr. RUMSEY, ignoring the evidence that I had provided, which nevertheless revealed undeniably the fraud of which Mr. RUMSEY had been guilty with the complicity of Mr. HOWARD;

9. The new elements were not taken into account by the judges, whose ruling does not mention anywhere that Mr. HOWARD was my employer and as such undoubtedly owed me my wages⁴;
10. The Court of Appeal sentenced me to pay Mr. RUMSEY the amount of €38,250 [sic] together with accrued interest amounting to €72,231.96 and miscellaneous costs bringing the total to €116,963.71, which is equivalent to about \$124,000.00;
11. I then resolved to request a review of the Court of Appeal's decision, but Mr. RUMSEY had my bank accounts seized and left only the non-seizable balance of €598.54, which is not sufficient to pay for my mere sustenance, let alone have myself represented by the compulsory attorney or even pay the filing fees for bringing civil proceedings before the State or Federal Courts of the domiciles of Mr. RUMSEY and Mr. HOWARD in the United States.

Consequently, I wish to lodge a criminal complaint against Mr. RUMSEY and Mr. HOWARD for criminal conspiracy and aggravated fraud with the aim of evading their legal obligations and appropriating my property, since Mr. RUMSEY never paid me the amount he claims from me, contrary to his mendacious statements, but attempted to distort to his benefit the payment of an amount of \$50,000 which was made by my employer Mr. HOWARD⁵, with respect to the wages he owed me in accordance with Federal law and the formal commitments he had given the Federal Government.

I declare that I have undeniable proofs to support my statements, whereas Mr. RUMSEY never produced any proof whatsoever that he had paid me the amount which he claims from me, nor any other amount, nor had he ever communicated with me at the time about the establishment of the purported loan, nor about any other matter.

I attached the evidence to this letter.

Respectfully.

Marc Moszkowski



⁴ Quite plausibly, the evidence I supplied being in the English language was either misunderstood by the French judges, or mistranslated.

⁵ The judgment only refers to Mr. HOWARD as to "*another associate*" of Mr. RUMSEY's, whereas Mr. HOWARD was my employer, who, as such, owed me my wages without any ambiguity whatsoever.

Legal actions brought against Marc Moszkowski

- i. Marc Moszkowski has faced 8 legal actions over the past 6 years. Although he managed to repeal attacks in the frivolous lawsuits brought against him by American entities¹ in Florida Court and in United States Federal Court and Federal Court of Appeals, though he is neither a resident nor a citizen of the United States, and although he defended himself without an attorney most of the time, he lost the frivolous lawsuit brought against him by a U.S. national in the French courts, despite Marc Moszkowski being a French resident and citizen and having been represented by a French attorney. He had won this last case very easily in summary proceedings in a first court, but lost in a second, surprisingly enough, given the strength of his position.
- ii. Namely, on November 22, 2022, a French court sentenced Marc Moszkowski to pay one David Rumsey², a citizen and resident of Monroe County, New York, the amount of €38,250 plus compound interest from 2013 to 2023, at the usurious and illegal rate of interest of 11.45%, the total approaching €125,000, despite French law which strictly prohibits long-term interest rates above 3.41% (January 2023).
- iii. The court found that the amount of €38,250 (\$50,000 at the time) was loaned by David Rumsey to Marc Moszkowski on June 4, 2013, according to a non-autographically signed draft contract produced by David Rumsey.
- iv. However, David Rumsey has never produced any evidence that he ever made any payment to Marc Moszkowski, since he never made said payment.
- v. Nor has David Rumsey ever produced any evidence of any direct communication with Marc Moszkowski regarding the establishment of the loan he alleges.
- vi. On the other hand, Marc Moszkowski produced irrefutable evidence that an amount of 50,000 US dollars had been paid **not** by Dave Rumsey, but by Rustin Howard, Chairman of the Board of DeepGulf, Inc., as an advance on the salaries legally owed to Marc Moszkowski, in order to allow him to pay his French taxes. Marc Moszkowski believes that the French judges never understood the simple English language evidence he had provided, and neither did his lawyer for that matter.

¹ In particular DeepGulf, Inc., a Florida company of which he is the main shareholder with 48% of the stock, and which sued him in 2018 for nearly \$4 million

² Also a shareholder in DeepGulf, Inc.

SEE PIECES OF EVIDENCE BELOW

- vii. Rustin Howard was, and still is, the Chairman of the Board of DeepGulf, Inc., a Florida corporation of which Marc Moszkowski was an employee and the President, and Rustin Howard had a legal obligation to pay the salaries of Marc Moszkowski, which he had formally guaranteed to the U.S. Government on his personal property.
- viii. Said advance on salaries was paid off to the company over the next few months through funds paid to DeepGulf, Inc. by the French oil and gas construction company which had hired Marc Moszkowski personally as a specialist in June 2013, at the daily rate of \$1,000 per day net of costs. No other salary was ever paid to Marc Moszkowski during the term of the contract, which had however brought a net income of US\$95,500 to DeepGulf, Inc.
- ix. Rustin Howard maintained for several years to Marc Moszkowski that the loan scheme was just an accounting maneuver between him and his friend David Rumsey.
- x. To corroborate the above assertion, for four and a half years, David Rumsey never claimed any payment from Moszkowski, and only did so in December 2017 at the instigation of Rustin Howard when a dispute arose between the latter two.
- xi. In 2019, Marc Moszkowski discovered among the documents he had subpoenaed and the U.S. Federal Court had compelled Rustin Howard to produce, that the capital invested by David Rumsey in DeepGulf, Inc. had been reduced by an amount exactly equal to the amount of the alleged loan, while that of Marc Moszkowski's had never increased, as if the company had bought back \$50,000 worth of shares from David Rumsey.
- xii. In short, Rustin Howard and David Rumsey had fraudulently conspired to disguise the legitimate salary which was owed to Marc Moszkowski as legitimate compensation for personal work which generated substantial income for the company, and to represent it as a personal loan from David Rumsey, at an exorbitant and illegal interest rate. Surprisingly enough, the French court ruled in favor of David Rumsey, despite the overwhelming evidence that David Rumsey's claim was fraudulent. Again, Marc Moszkowski believes that the French judges never really read or understood the very clear evidence he had produced in the English language, and neither did his lawyer for that matter.
- xiii. In June 2020, the U.S. Court for the Northern District of Florida confirmed that DeepGulf, Inc. owed Marc Moszkowski a very large amount (close to one million). This amount was never paid because Rustin Howard had produced in court forged documents to the effect that Moszkowski had allegedly made the absurd sacrifice of the amounts owed to him, although without any rationale or compensation of any kind. Moszkowski could not object to the forgery, since the presidential ban on entry into the U.S. consecutive to the Covid-19 pandemic barred him from appearing in U.S. Court, and Mr. Howard had dishonorably opposed a videoconference appearance.

SEE PIECES OF EVIDENCE BELOW

THREE PIECES OF EVIDENCE SHOWING THAT THE LOAN SCHEME NEVER GOT BEYOND THE SCHEME STAGE AND THAT NO PAYMENT WAS EVER MADE BY MR. DAVID RUMSEY:

1. The company's funds were more than sufficient to allow the payment of Marc Moszkowski's salaries after March 2013, the date of the last salary;
2. Mr. Rustin Howard had in any case formally and officially guaranteed the payment of these salaries out of his own funds;
3. Payment of the amount of \$50,000 was made by an officer of Deepgulf, Inc. Mr. Rustin Howard, not by Mr. Rumsey.

TYPE OF DOCUMENT	FILE	REMARKS
1. Summary of payments made to DeepGulf, Inc. by French company GEOCEAN for the personal consultancy activities of Marc Moszkowski, in Singapore, Benin, China, and Malaysia	PAYMENTS FROM GEOCEAN TO DEEPGULF FOR THE ACTIVITIES OF MARC MOSZKOWSKI	\$95,500 was paid to DeepGulf, Inc. on behalf of Marc Moszkowski after DeepGulf, Inc. ceased payment of Marc Moszkowski's salaries
2. Commitment by Mr. Rustin Howard to the US Federal Government to guarantee the salaries of Marc Moszkowski out of its own funds and property:	RUSTIN HOWARD ATTESTATION	This attestation was kept secret from Marc Moszkowski until mid-2018
3. Transfer order dated June 4, 2013, signed by Mr. Rustin Howard, from his investment fund Whitesands , LLC	WHITESANDS BANK TRANSFER	It was Mr. Rustin Howard who made the transfer from his investment fund and who signed it

SEE PIECES OF EVIDENCE BELOW

GEOCEAN PAYMENTS TO DEEPGULF ON BEHALF OF MOSZKOWSKI

Geocean		Grand total:	\$	125,500.00	\$	4,986.20	\$	130,486.20
Payee	Date	Type	Consultancy fees		Expenses		Invoice #	
DeepGulf	8/4/10	Services	\$	26,000.00				1
DeepGulf	8/18/10	Expenses			\$	3,426.00		2
DeepGulf	5/23/12	Services	\$	4,000.00				3
DeepGulf	5/23/12	Expenses			\$	496.73		4
DeepGulf	3/28/13	Services	\$	4,000.00				5
DeepGulf	3/28/13	Expenses			\$	967.47		6
DeepGulf	7/30/13	Services	\$	10,000.00				7
DeepGulf	8/7/13	Services	\$	37,500.00				8
DeepGulf	9/9/13	Services	\$	18,750.00				9
DeepGulf	1/6/14	Services	\$	18,750.00				10
DeepGulf	3/6/14	Services	\$	2,000.00				11
DeepGulf	12/3/14	Services	\$	4,500.00				12
DeepGulf	12/3/14	Expenses			\$	96.00		13
After March 2013			\$	95,500.00				

LAST SALARY PAID TO MARC MOSZKOWSKI: March 2013

Jeffrey W. Goldman | 617 348 3025 | jgoldman@mintz.com

August 12, 2005

EV392160463US

VIA FEDERAL EXPRESS
U.S. Citizenship & Immigration Services
Texas Service Center
P.O. Box 852211
Mesquite, TX 75185-2211

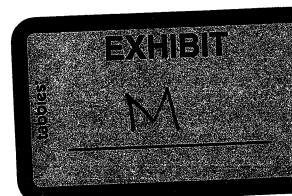
Re: Form I-129, H-1B Petition for Nonimmigrant Worker - NOT SUBJECT TO CAP
Petitioner: DeepGulf, Inc.
Beneficiary: Mr. Marc MOSZKOWSKI

PLEASE NOTIFY THE CONSULATE IN PARIS, FRANCE

Dear Sir or Madam:

In connection with the above-captioned matter, enclosed please find the following forms and documentation submitted in support of the Petitioner's request to sponsor Mr. Moszkowski for H-1B employment until August 1, 2008:

- Attorney Representation Form G-28 with attached checks to cover the government filing fees (\$185, \$500, and \$750);
- Form I-129, Petition for a Nonimmigrant Worker;
- H Classification Supplement to Form I-129;
- H-1B Data Collection and Filing Fee Exemption Supplement;
- Form ETA 9035E, Certified Labor Condition Application (ETA Case # I-05189-1883137);
- Petitioner Letter of Support;
- Petitioner Information including business plan and PowerPoint presentation;
- Personal Guarantee of Rus Howard, Chairman of DeepGulf, Inc., attesting that he will use personal assets including the equity in his home to assure the Citizenship and Immigration Service that the H-1B prevailing wage will be paid. Also attached are tax returns and Settlement Statements from the real estate/residences owned by Mr. Howard;
- Copy of the Beneficiary's educational credentials and professional evaluation;



Attestation

I, Rus Howard, attest to the following:

1. I am a U.S. Citizen;
2. My company, DeepGulf, Inc., is a startup company with plenty of business to pay the prevailing wage salary of \$120,000 in support of H-1B authorized employment for Mr. Marc Moszkowski;
3. In the event the company does not meet financial expectations, I will use personal assets, including the equity in my home, to guarantee payment of the prevailing wage. Please see the attached personal financial paperwork.

Signature: _____

Date: _____

A customer or team member, with the customer present, completes this form when requesting to send a wire. Outgoing wires can only be sent for Wells Fargo customers. Retain the original copy and provide a copy to the customer ensuring you give the customer the Agreement for Outgoing Wire Transfer Request (page 2 when form is accessed on-line & preprinted on the back of printed forms). Note: Wells Fargo Wire Transfer Services will route wires based on correspondent banking relationships. See back (page 2) for explanations of the Mexican CLABE account, the SWIFT BIC, the International Routing Code (IRC) and the International Bank Account Number (IBAN). ***Required information is noted with an asterisk.**

*Today's Date
06/04/2013

*Send Date (If next day submit wire after 4:30 CT. Store must hold if other than today or next day date)
06/04/2013

1. Originator's Information

*Customer's Name
Whitesands, LLC *Phone Number
(850) 470-9383

*Customer's Physical Address, City, State, Zip Code

17 Palafox St Suite 370 Pensacola, FL 32502

*Transfer from Wells Fargo Account No. (Must be checking, savings, market rate, wholesale checking account or 10-digit command account)

2000035255255

*U.S. Dollar Wire Amount

50000.00

International Wire only: When sending in foreign currency, please ensure the beneficiary's account accepts the designated currency.

Funds to be sent in foreign currency

Foreign Currency Type/Name (SVT/SVP will default to FX unless specified otherwise)

*Currency Code (if known)

*Foreign Currency Amount

☐ Yes ☒ No

2. Beneficiary/Recipient Information (This is the ultimate recipient of the wire transfer funds.)

*Beneficiary/Recipient Name

Arthur Moszkowski

*Beneficiary Account Number, Mexican CLABE # or the International Bank Account Number (IBAN) where applicable:

FR7618106008108096420605022

Beneficiary's Physical Address, City, State, Zip Code (A physical address is required for foreign wires.)

unknown

Information for the Beneficiary (invoice number, purchase order number, etc.)

Beneficiary Phone Number

3. Beneficiary Bank Information (This is the financial institution where the beneficiary maintains their account.)

*Beneficiary Bank RTN or SWIFT Bank Identifier Code (SWIFT BIC)

AGRIFRPP881

*International Routing Code (IRC)

*Beneficiary Bank Name

Caisse Regionale de Credit Agricole des Savoie

Beneficiary Bank Address, City, State, Zip, Country (optional information)

unknown

Information for Beneficiary Bank (wires to Mexican banks require the CLABE account number in the Beneficiary instructions to ensure correct payment.)

4. Intermediary Bank Information (This is a financial institution that the wire must pass through before reaching the final beneficiary bank.) This section is optional and not required for all wires. Please note that routing may be altered depending on Wells Fargo Bank's correspondent relationships.

Optional: *Intermediary Beneficiary Bank RTN or SWIFT BIC

International Routing Code (IRC)

*Intermediary Bank Name

*Intermediary Bank Account No.

Intermediary Bank Address City, State, Zip, Country (optional information)

Information for Intermediary Bank

5. Wire Fee & Customer Signature (Additional fees from intermediary and beneficiary banks may be charged to international transactions - see Fees Section on page 2 of this form.)

Wire Fee Amount (the Transfer From account will be charged the fee.) The region that houses the account being debited determines the fee amount. Use the fee information available through Teamworks and/or Banker's Guide. Do not use SVT/SVP for fee when account is not in your region. Additional fees may apply (see page 2 of this form). Contact WBR Store Support for questions regarding Command Fees.

*AU where the Originator's account is located

66092

*Fee Amount

\$ 45.00

My signature here indicates agreement to all of the information on this Outgoing Wire Transfer Request and to the terms and conditions on the second page of this request. Wells Fargo is authorized to rely on the information on this Request in making the requested funds transfer.

***X**

*Date

06/04/2013

6. Wells Fargo Use Only - Wells Fargo Approval - Following MUST be completed for ALL outgoing wires.

International Wire Foreign Currency Information

Rate

Contract No. (required when \$100,000 or more U.S. \$)

FX Trader Contact

*Wire Transaction/FAS Number

FW-0066092-155-722232

*Name on ID used by customer

Rustin R Howard

Method used to verify business acct. transaction authority

Sig Card

*1st ID type, number, issued by State/Country & Expiration Date

FL DL h630-736-56-378-0 Exp 10/18/2017

*2nd ID type, number, issued by State/Country & Expiration Date

PIN

*Initiated by and AU#

X

*First Approval

X

Second Approval, if applicable

X

7. Wires in Process (WIP)

*When Customer's account is not debited, the WIP Account is funded by

☐ Paid by Check ☐ Paid Cash ☐ Paid through account other than checking, savings, MRA, TRS or Hogan. Reference Acct #:

Tax ID Type - Type & No. are required when customer's account is not debited.

Tax ID No. (if non-citizen provide Alien ID #, Passport # & Country)

☐ Social Security ☐ TIN ☐ Non-U.S. Citizen without TIN ☐ Employer ID